

**El Paso County  
Delia Briones  
County Clerk**

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Instrument Number: 00000000012

ma.mendez

Recorded On: 5/21/2026 12:16:44 PM

Number of Pages: 1

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\*\*\*\*\*THIS PAGE IS PART OF THE INSTRUMENT\*\*\*\*\*

Any provision herein which restricts the Sale, Rental or use of the described REAL PROPERTY because of color or race is invalid and unenforceable under federal law.

**File Information**

Document Number 00000000012

Receipt Number 1989437

Fees \$24.00

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State of Texas  
COUNTY OF EL PASO

I hereby certify that this instrument was FILED in the File Number sequence on the date/time printed hereon, and was duly RECORDED in the Official Record of El Paso County, Texas.

Delia Briones  
County Clerk  
El Paso County, TX

A handwritten signature in cursive script that reads "Delia Briones".

## NOTICE OF TRUSTEE'S SALE AND APPOINTMENT OF SUBSTITUTE TRUSTEE

**Assert and protect your rights as a member of the armed forces of the United States. If you are or your spouse is serving on active military duty, including active military duty as a member of the Texas National Guard or the National Guard of another state or as a member of a reserve component of the armed forces of the United States, please send written notice of the active duty military service to the sender of this notice immediately. Sender is: Codilis & Moody, P.C., 20405 State Highway 249, Suite 170, Houston, TX 77070**

### INSTRUMENT BEING FORECLOSED AND MORTGAGE SERVICER INFORMATION

Deed of Trust dated January 23, 2007 and recorded under Clerk's File No. 20070011125, in the real property records of EL PASO County Texas, with Jose Luis Rojas and Tomasa R. De Rojas as Grantor(s) and Mortgage Electronic Registration Systems, Inc., as beneficiary, as nominee for New Century Mortgage Corporation, its successors and assigns as Original Mortgagee.

Deed of Trust executed by Jose Luis Rojas and Tomasa R. De Rojas securing payment of the indebtedness in the original principal amount of \$84,000.00 and obligation therein described including but not limited to the promissory note and all modifications, renewal and extensions of the promissory note (the "Note") executed by Jose Luis Rojas. Deutsche Bank National Trust Company, as Trustee for the Registered Holders of Morgan Stanley ABS Capital I Inc. Trust 2007-HE7 Mortgage Pass-Through Certificates, Series 2007-HE7 is the current mortgagee (the "Mortgagee") of the Note and Deed of Trust or Contract Lien.

The Mortgage Servicer is authorized to represent the Mortgagee by virtue of a servicing agreement with the Mortgagee. Pursuant to the Servicing Agreement and Texas Property Code 51.0025, the Mortgage Servicer is authorized to collect the debt and to administer any resulting foreclosure of the property securing the above referenced loan. Shellpoint Mortgage Servicing is acting as the Mortgage Servicer for the Mortgagee. Shellpoint Mortgage Servicing, is representing the Mortgagee, whose address is: 75 Beattie Place, Suite 300, Greenville, SC 29601.

#### Legal Description:

**A PORTION OF LOT 1, BLOCK 38B, PEBBLE HILLS UNIT FOUR REPLAT "C", AN ADDITION TO THE CITY OF EL PASO, EL PASO COUNTY, TEXAS, ACCORDING TO THE PLAT THEREOF, RECORDED IN VOLUME 56, PAGE 31, REAL PROPERTY RECORDS OF EL PASO COUNTY, TEXAS, AND BEING MORE PARTICULARLY DESCRIBED BY EXHIBIT A ATTACHED HERETO AND MADE A PART HEREOF FOR ALL PURPOSES**

### SALE INFORMATION

**Date of Sale: 07/07/2026**

**Earliest Time Sale Will Begin: 10:00 AM**

**Location of Sale:** The place of the sale shall be: EL PASO County Courthouse, Texas at the following location: El Paso County Coliseum, 4100 E Paisano Dr, El Paso, TX 79905 or if the preceding area is no longer the designated area, at the area most recently designated by the County Commissioner's Court.

### TERMS OF SALE

A default has occurred in the payment of said herein referenced indebtedness, and the same is now wholly due, and the Mortgagee and/or Mortgage Servicer has requested the hereinafter appointed Substitute Trustee to sell said property to the highest bidder for cash and to distribute or apply the proceeds of said sale in accordance with the terms of said Deed of Trust.

The Sale will be conducted as a public auction to the highest bidder for cash, except that Mortgagee's bid may be by credit against the indebtedness secured by the lien of the Deed of Trust. Pursuant to the Deed of Trust, the



mortgagee has the right to direct the Trustee to sell the property in one or more parcels and/or to sell all or only part of the property. Pursuant to Section 51.009 of the Texas Property Code, the Property will be sold in "AS IS," "WHERE IS" condition, without any express or implied warranties, except as to the warranties of title, if any, provided for under the Deed of Trust.

The sale will begin at the earliest time stated above, or within three (3) hours after that time. If the sale is set aside for any reason, the Purchaser at the sale shall be entitled only to a return of the funds paid. The Purchaser shall have no further recourse against the Mortgagor, the Mortgagee or the Mortgagee's attorney.

**STRICT COMPLIANCE WITH FINCEN RULES AND REGULATIONS IS REQUIRED FOR PURCHASE OF THE PROPERTY AT THIS SALE. A FORECLOSURE DEED WILL NOT ISSUE WITHOUT SUCCESSFUL BIDDER PROVIDING ALL INFORMATION NECESSARY FOR STRICT COMPLIANCE WITH FINCEN.**

**THIS INSTRUMENT APPOINTS THE SUBSTITUTE TRUSTEE(S) IDENTIFIED TO SELL THE PROPERTY DESCRIBED IN THE SECURITY INSTRUMENT IDENTIFIED IN THIS NOTICE OF SALE. THE PERSON SIGNING THIS NOTICE IS THE ATTORNEY OR AUTHORIZED AGENT OF THE MORTGAGEE OR MORTGAGE SERVICER.**

**WHEREAS, in my capacity as attorney for the Mortgagee and/or Its Mortgage Servicer, and pursuant to Section 51.0076 of the Texas Property Code, I HEREBY APPOINT AND DESIGNATE Beverly Mitrisin, Auction.com, LLC, or Codilis & Moody, P.C., as Substitute Trustee.**

The address for the Substitute Trustee for purposes of Section 51.0075(e) of the Texas Property Code is:  
Codilis & Moody, P.C.  
20405 State Highway 249, Suite 170  
Houston, TX 77070  
(281) 925-5200

*Beverly Mitrisin*  
BEVERLY MITRISIN

Executed on 05/13/2026.

/s/ Danya F. Gladney SBOT No. 24059786, Attorney at Law  
Codilis & Moody, P.C.  
20405 State Highway 249, Suite 170  
Houston, TX 77070  
(281) 925-5200

Posted and filed by: \_\_\_\_\_

Printed Name: \_\_\_\_\_

C&M No. 44-25-00964

# Exhibit A

Description of a parcel of land being a portion of Lot 1, Block 36A, Pebble Hills Unit 4, Replat C, City of El Paso, El Paso County, Texas and being more particularly described by metes and bounds as follows:

From a point being a city monument located at the centerlines intersection of Edgerock Drive and Islerock Drive in Pebble Hills Unit Two, El Paso, Texas;; Thence South  $52^{\circ}04'20''$  East along the centerline of Islerock Drive a distance of 78.40 feet; Thence South  $37^{\circ}55'40''$  West a distance of 30.0 feet to the "Point of Beginning";

Thence South  $37^{\circ}55'40''$  West a distance of 110.0 feet;

Thence North  $52^{\circ}04'20''$  West a distance of 48.4 feet;

Thence North  $37^{\circ}55'40''$  East a distance of 90.0 feet;

Thence 31.42 feet along the arc of a curve to the right whose interior angle is  $90^{\circ}$ , whose radius is 20.0 feet and whose chord bears North  $82^{\circ}55'40''$  East a distance of 28.28 feet;

Thence South  $52^{\circ}04'20''$  East a distance of 28.4 feet to the "Point of Beginning" and containing in all 5238.16 square feet or 0.1203 acres of land more or less.